

HOUSE No. 4296

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 24, 2025.

The committee on State Administration and Regulatory Oversight, to whom was referred the petition (accompanied by bill, House, No. 3324) of Michelle M. DuBois that the commissioner of Capital Asset Management and Maintenance be authorized to convey certain parcels of land located within the city of Brockton to Catholic Charitable Bureau of the Archdiocese of Boston, Inc., reports recommending that the accompanying bill (House, No. 4296) ought to pass.

For the committee,

ANTONIO F. D. CABRAL.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Division of Capital Asset Management and Maintenance to dispose of certain parcels of land in the city of Brockton.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) As used in this section, the following words shall, unless the context
2 clearly requires otherwise, have the following meanings:-

3 “Affordable housing”, shall mean the development of multi-family housing 100 per cent
4 of which shall be affordable to households with incomes at or below 80 per cent of the area
5 median income, adjusted for household size.

6 “Community multi-services center”, a location for the provision of services to the public,
7 which may include, without limitation, the distribution of food, meals and clothing and the
8 provision of childcare and vocational training.

9 (b) Notwithstanding sections 32 through 37, inclusive, of chapter 7C of the General
10 Laws or any general or special law to the contrary, the commissioner of capital asset
11 management and maintenance, in consultation with the president of Massasoit Community
12 College, may convey a certain parcel of land in the city of Brockton described in subsection (c)

to Catholic Charitable Bureau of the Archdiocese of Boston, Inc. for the purposes of affordable housing and a community multi-services center. The parcel shall be conveyed by deed without warranties or representations by the commonwealth.

(c) The parcel that may be conveyed by the division of capital asset management and maintenance pursuant to subsection (b) is more particularly shown as the land bounded by Beaumont avenue, Quincy street, Crescent street and Burrill avenue a.k.a. Christo's way on a plan entitled, "Plan of Land 782 Crescent Street Brockton, Mass. prepared for the Commonwealth of Capital Asset Management and Maintenance on Behalf of Massasoit Community College" and dated October 4, 2013, which plan is on file with the division of capital asset management and maintenance; provided, however, that the exact location and boundaries of the parcel shall be determined by the commissioner.

(d) The deed or other instrument conveying the parcels pursuant to subsection (b) shall provide that the parcels shall be used solely for the purposes of affordable housing and a community multi-service center. Any such deed or instrument shall include a reversionary clause that stipulates that if the parcels cease at any time to be used for those allowed purposes, title to the parcels shall, at the election of the commonwealth, revert to the commonwealth and the reversionary clause shall be enforceable notwithstanding the time limit set forth in section 7 of chapter 184A of the General Laws. The reversionary clause shall require a reasonable notice and cure period to cure any default.

(e) The consideration for the conveyance authorized in this section shall be \$1.

(f) If Catholic Charitable Bureau of the Archdiocese of Boston, Inc. does not complete a purchase of the parcels pursuant to this act on or before December 31, 2030, or such time as

mutually agreed to by Catholic Charitable Bureau of the Archdiocese of Boston, Inc. and the commissioner of capital asset management and maintenance, then, notwithstanding sections 32 to 37, inclusive, of chapter 7C of the General Laws or any other general or special law to the contrary, the commissioner of capital asset management and maintenance may sell or lease for a term up to 99 years, including all renewals and extensions, or otherwise grant, convey or transfer to purchasers or lessees an interest in the property or portions thereof, for such purposes and on such terms and conditions as the commissioner of capital asset management and maintenance considers appropriate. The parcel shall be conveyed by deed without warranties or representations by the commonwealth.

In making any such disposition, the commissioner of capital asset management and maintenance shall use appropriate competitive bidding processes and procedures. Not less than 30 days before the date on which bids, proposals or other offers to purchase or lease the property or any portion thereof are due, the commissioner of capital asset management and maintenance shall place a notice in the central register published by the state secretary pursuant to section 20A of chapter 9 of the General Laws stating the availability of the property, the nature of the competitive bidding process, including the time, place and manner for the submission of bids and proposals and the opening of the bids or proposals and such other information as the commissioner considers relevant.

The commissioner shall commission an independent appraisal prepared in accordance with the usual and customary professional appraisal practice by a qualified appraiser. The commissioner of capital asset management and maintenance shall submit any appraisals to the inspector general for review and comment. The inspector general shall review and approve any appraisals and the review shall include an examination of the methodology utilized for the

appraisals. The inspector general shall prepare a report of such review and file the report with the commissioner of capital asset management and maintenance for submission by the commissioner of capital asset management and maintenance to the house and senate committees on ways and means and the joint committee on state administration and regulatory oversight. The commissioner shall submit copies of the appraisals and the inspector general's report to the house and senate committees on ways and means and the joint committee on state administration and regulatory oversight not less than 15 days before the execution of the instrument effecting the conveyance described in this subsection. If the consideration for the parcel to be conveyed is less than the fair market value, the commissioner shall place notice in the central register of the conveyance, the amount of the transaction and the difference between the calculated value and the price received.

SECTION 2. (a) Notwithstanding sections 32 through 37, inclusive, of chapter 7C of the General Laws or any general or special law to the contrary, the commissioner of capital asset management and maintenance, in consultation with the president of Massasoit Community College, may convey certain parcels of land located within the city of Brockton described in subsection (b) to the city of Brockton for redevelopment purposes. The parcels shall be conveyed by deed without warranties or representations by the commonwealth.

(b) The parcels that may conveyed by the division of capital asset management and maintenance pursuant to this section are more particularly shown as "Area 3.818 Acres" on a plan entitled, "Plan of Land in Brockton, Mass. drawn for Christo's Incorporated" and dated March 23, 1977 and revised February 1, 1996, which plan is on file with the division of capital asset management and maintenance; provided, however, that the exact location and boundaries of the parcel shall be determined by the commissioner.

81 (c) Consideration for the conveyance authorized in this section shall be \$1.

82 (d) The city of Brockton may sell or lease the parcels described in this section for
83 redevelopment. If the city of Brockton sells or leases any portion of the parcels, the net proceeds
84 from such sale or lease, as determined by the city of Brockton and agreed to by the commissioner
85 of capital asset management and maintenance, shall be allocated between the city of Brockton
86 and the commonwealth in equal shares; provided, however, that the commissioner may agree to
87 reduce the share of the commonwealth's proceeds to not less than 40 per cent of the net proceeds
88 to provide certain incentives to the city of Brockton to sell or lease the parcels expeditiously. If
89 the net proceeds, as so determined, are a negative amount, the commonwealth shall not be
90 required to make any payments to the city of Brockton.

91 SECTION 3. Notwithstanding sections 32 through 37, inclusive, of chapter 7C of the
92 General Laws or any general or special law to the contrary, the commissioner of capital asset
93 management and maintenance, in consultation with the mayor of the city of Brockton and the
94 Old Colony Planning Council, established pursuant to chapter 332 of the acts of 1967, may, for
95 no consideration, convey to the city of Brockton any portion of parcels shown on the city of
96 Brockton assessor's map as parcels 143-080, 143-079 and 143-081 adjacent to Quincy street in
97 the city of Brockton that maybe necessary for vehicle safety, addition of a turning lane and
98 improving vehicle access to the entrance to Massasoit Community College. The exact location
99 and boundaries of the parcels to be conveyed shall be determined by the commissioner of capital
100 asset management and maintenance.

101 SECTION 4. The grantee or lessee of any real property disposed of pursuant to this act
102 shall be responsible for all costs relating to the conveyance, including, but not limited to,

103 appraisals, surveys, plans, recordings and any other expenses, as shall be deemed necessary by
104 the commissioner. The grantee or lessee shall acquire the property thereon in its present
105 condition. Upon the recording of the deed conveying the parcel to a grantee, said grantee shall be
106 responsible for all costs, liabilities and expenses for its ownership.

107 SECTION 5. The commonwealth's share of the net proceeds of the sale of the parcels, or
108 any portion thereof, pursuant to this act shall be deposited into an expendable trust established on
109 behalf of Massasoit Community College pursuant to section 6 of chapter 6A of the General Laws
110 and 801 CMR 50.00. The funds deposited into the trust may be expended for capital repairs and
111 improvements to facilities on the campus of Massasoit Community College, including, but not
112 limited to, deferred maintenance, decarbonization or other capital investments, as determined by
113 the commissioner and the president of Massasoit Community College and approved by the
114 secretary of administration and finance.